

February 28, 2013



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9623
(THIRTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 1.5D and 5.1 materials in a cargo tank with a dromedary compartment (cargo compartment) containing Division 1.1 explosives mounted directly behind the tractor cab subject to the limitations specified herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analysis performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101 Table Column (8C), 173.63, 177.835(c)(3) and 177.835(g), in that alternative packaging and segregation is authorized, as specified herein and § 177.835(a) in that the engine may remain running for certain operations.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008 and additional information from the Institute of Makers of Explosives dated January 16, 2013.

February 28, 20136. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Boosters, <i>without detonator</i>	1.1D	UN0042	II
Cord, <i>detonating, flexible</i>	1.1D	UN0065	II
Detonator assemblies, <i>non-electric, for blasting</i>	1.1B	UN0360	II
Detonators, <i>electric, for blasting</i>	1.1B	UN0030	II
Detonators, <i>non-electric, for blasting</i>	1.1B	UN0029	II
Explosive, <i>blasting, type A</i>	1.1D	UN0081	II
Explosive, <i>blasting, type B</i>	1.1D	UN0082	II
Explosive, <i>blasting, type E</i>	1.1D	UN0241	II

7. SAFETY CONTROL MEASURES: Prescribed packaging is a DOT Specification MC 306 or MC 307 cargo tank prescribed in DOT-SP 8554; the Butler manufacturing Company's units identified as models 1025, 1200 and 1500 or Fruehorf hopper pressure bulk trailer model HABF2J; Ireco Chemical's Bulk Delivery Truck as shown on drawings submitted with their application; repump truck as shown on Ireco drawing AYC 266, dated November 1982, AYC 327 dated March 1983; with a dromedary compartment (cargo compartment) mounted directly behind the tractor cab. The cargo tanks are authorized only for shipments of blasting agents or oxidizers which have already been authorized to move in bulk quantities under certain special permits. The dromedary compartment (cargo compartment) is authorized only for shipment of Class 1 (explosive) materials, other than initiating explosives. The dromedary compartment (cargo compartment) must be in conformance with § 177.835(e) and (f) or with § 177.835(g)(3) and applicant's drawings numbered 1, 2 and 3 on file in the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

February 28, 2013

8. SPECIAL PROVISIONS:

- a. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.
- b. Each motor vehicle must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-SP 9623."
- c. Motor carriers operating under the terms of this special permit must have a "Satisfactory" safety rating as prescribed in Part 385 of the 49 CFR.
- d. The requirements of § 177.835(a) are waived when the engine of a cargo tank motor vehicle is necessary for the operation of a pump, auger, or other equipment needed to load or unload materials from the vehicle.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

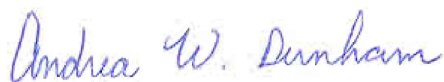
February 28, 2013

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: dl